

Part 5

Appointment of Persons in respect of Minor Works

27. Prescribed building professionals to be appointed for purposes of section 4A of Ordinance

For the purposes of section 4A of the Ordinance, the following prescribed building professionals are required to be appointed in respect of class I minor works—

- (a) an authorized person, or, if the works are a prescribed repair or any associated demolition works, a registered inspector assuming the role of an authorized person in respect of the works; (*L.N. 148 of 2011*)
- (b) if the works involve any structural elements, a registered structural engineer; and
- (c) if the works involve any geotechnical elements, a registered geotechnical engineer.

28. Prescribed registered contractors to be appointed for purposes of section 9AA of Ordinance

(1) For the purposes of section 9AA of the Ordinance, the following prescribed registered contractor is required to be appointed in respect of class I minor works, class II minor works or class III minor works—

- (a) a registered general building contractor;
- (b) if the works fall within the description of item 1.2, 1.5, 1.9, 1.10, 1.24, 1.30, 1.32, 1.33, 1.34, 1.37, 1.38, 1.39, 1.40, 2.1, 2.2, 2.4, 2.9, 2.12, 2.24, 2.25, 2.26, 2.27, 2.31, 2.32, 2.37, 2.38, 2.39, 2.40, 2.63, 2.64, 2.65, 2.66, 2.67, 3.1, 3.2, 3.4, 3.5, 3.7, 3.8, 3.18, 3.19, 3.20, 3.21, 3.22, 3.24, 3.26, 3.30, 3.32, 3.33, 3.43, 3.49, 3.63, 3.64, 3.65

- or 3.66 of Part 3 of Schedule 1, a registered specialist contractor whose name is entered in the demolition works category in the specialist contractors sub-register;
- (c) if the works fall within the description of item 1.11, 1.12, 2.10, 2.11 or 3.53 of Part 3 of Schedule 1, a registered specialist contractor whose name is entered in the site formation works category in the specialist contractors sub-register;
 - (d) if the works fall within the description of item 1.11, 1.12, 2.10 or 2.11 of Part 3 of Schedule 1, a registered specialist contractor whose name is entered in the foundation works category in the specialist contractors sub-register;
 - (e) if the works fall within the description of item 1.12 or 2.11 of Part 3 of Schedule 1, a registered specialist contractor whose name is entered in the ground investigation field works category in the specialist contractors sub-register;
 - (ea) if the works fall within the description of item 1.46, 1.51, 2.42 or 2.46 of Part 3 of Schedule 1, a registered specialist contractor whose name is entered in the ventilation works category in the specialist contractors sub-register; or (*L.N. 60 of 2020*)
 - (f) a registered minor works contractor who is registered for the type or item of minor works to be carried out. (*L.N. 60 of 2020*)
- (2) In this section, ***specialist contractors sub-register*** (專門承建商分冊) means a sub-register in the register of specialist contractors maintained under section 8A(2) of the Ordinance.
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